

(48)

Tentative Ruling

Re: ***Erlinda Nadora v. Valley Dental & Orthodontics***
Superior Court Case No. 25CECG04546

Hearing Date: September 16, 2026 (Dept. 501)

Motion: By Plaintiff for Leave to File a First Amended Complaint

Tentative Ruling:

To grant plaintiff Erlinda Nadora's motion for leave to file a first amended complaint. (Code Civ. Proc., § 473.) Plaintiff shall file their first amended complaint within 10 days of the date of service of this order.

Explanation:

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading" (Code Civ. Proc. § 473, subd. (a)(1).) "While a motion to permit an amendment to a pleading to be filed is one addressed to the discretion of the court, the exercise of this discretion must be sound and reasonable and not arbitrary or capricious. And it is a rare case in which 'a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.' If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (*Morgan v. Superior Court of Cal. In and For Los Angeles County* (1959) 172 Cal.App.2d 527, 530, internal citations omitted.)

Plaintiff Erlinda Nadora moves the court for an order granting her leave to file a First Amended Complaint. The proposed First Amended Complaint amends the first cause of action and adds a second cause of action to include additional allegations against Jasbir Cheema Dental Corporation and Jasbir S. Cheema, DDS. The amendments are intended to ensure the pleading includes all claims plaintiff seeks to litigate against the parties. The amendments do not appear to prejudice defendants. Defendants have not opposed the motion. Accordingly, the court grants plaintiff's motion for leave to file the First Amended Complaint.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 09/15/26
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: **Natalie Morgan v. FCA US LLC**
Superior Court Case No. 25CECG05990

Hearing Date: September 16, 2026 (Dept. 501)

Motion: By Defendant FCA US LLC on Demurrer to the Sixth Count of the Complaint

Tentative Ruling:

To sustain defendant FCA US LLC's general demurrer to the sixth count of the complaint with leave to amend. (Code Civ. Proc., § 430.10, subd. (e) and (f).) Plaintiff is granted 10 days leave to file the First Amended Complaint, which will run from service by the clerk of the minute order. New allegations/language must be set in **boldface** type.

Explanation:

Defendant FCA US LLC ("Defendant") demurs to the sixth count of the complaint of plaintiff Natalie Morgan ("Plaintiff").

Meet and Confer

The demurring party must meet with the opposing party, in person, by telephone, or by video conference prior to filing a demurrer and file and serve with the motion a declaration detailing the meet-and-confer efforts. (Code Civ. Proc., § 430.41, subd. (a).) Defendant attempted to call Plaintiff's counsel multiple times but was unable to reach them or receive any response from Plaintiff's counsel. (Turner Decl., ¶¶ 7-8.) Defendant has met the meet and confer requirement.

Failure to State Facts Sufficient to Constitute a Cause of Action

The function of a demurrer is to test the sufficiency of a plaintiff's pleading by raising questions of law. (*Plumlee v Poag* (1984) 150 Cal.App.3d 541, 545) The truth of the facts alleged in the complaint are assumed true as well as the reasonable inferences that may be drawn from those facts. (*Miklosy v. Regents of University of California* (2008) 2 Cal.4th 876, 883; see also *Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1168 [actual reliance in support of a fraud claim reasonably inferable from the plaintiff's complaint]; Code Civ. Proc., 452 ["In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties."].)

A general demurrer, "admits the truth of all material factual allegations in the complaint;" the plaintiff's "ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court" (*Alcorn v. Anbro Engineering, Inc.* (1970) 2 Cal.3d 493, 496; *Stella v. Asset Management Consultants, Inc.* (2017) 8 Cal.App.5th 181, 190 ["We assume the truth of the properly pleaded factual

allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken."].)

Plaintiff's sixth count of the complaint alleges that Defendant committed fraudulent concealment. The required elements for fraudulent concealment claim are:

(1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.

(*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40.) Defendant contends Plaintiff's complaint fails because she has failed to plead facts required to meet the second element, a duty to disclose, of a fraudulent concealment claim.

Analysis of Duty to Disclose

"Fraud must be pled specifically; general and conclusory allegations do not suffice." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) A duty to disclose can arise from five possible circumstances:

(1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff...Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as "between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.

(*Rattagan v. Uber Technologies, Inc.*, *supra*, 17 Cal.5th at 40.)

Defendant contends that no preexisting relationship between Defendant and Plaintiff is raised within the complaint. The complaint only discusses the warranty relationship between Plaintiff and Defendant and the warranty relationship would only have occurred after Plaintiff purchased the vehicle. Plaintiff points to the analogous case of *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 ("*Dhital*") and argues Plaintiff has pled sufficient facts. However, the facts in *Dhital* are different. In *Dhital*, the complaint contained allegations that indicated the authorized dealership that sold the car were agents of Nissan for the purposes of sale of vehicles to consumers. (*Id.*, at 844.) The complaint here contains no such allegations. Further, the complaint contains no information that discusses any preexisting relationship between Plaintiff and Defendant.

Defendant additionally raises that Plaintiff was not specific enough with regards to the issues with the engine and Defendant's source of information. However, Plaintiff pled the issue about the engine to the same specificity as was accepted in *Dhital*. (*Dhital v. Nissan North America, Inc.*, *supra*, 84 Cal.App.5th at 844.) Therefore, with regards to the issues with the engine, Plaintiff's fraudulent concealment complaint was adequately pled.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 09/15/26
(Judge's initials) (Date)